

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION ADOPTING AN AMENDMENT TO THE FUTURE LAND USE MAP IN *PLANCHEYENNE*, THE MASTER PLAN FOR THE CITY OF CHEYENNE AND THE COMPREHENSIVE PLAN FOR PORTIONS OF LARAMIE COUNTY, AMENDING THE LAND USE CATEGORY FROM COMMUNITY BUSINESS TO URBAN RESIDENTIAL FOR ALL OF LOT 2 AND A PORTION OF LOT 3, BLOCK 1, SADDLE RIDGE SUBDIVISION, CHEYENNE, WYOMING, TO BE KNOWN AS SADDLE RIDGE 7th FILING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF US HIGHWAY 30 AND WHITNEY ROAD).”

WHEREAS, *PlanCheyenne*, as amended by *PlanCheyenne: Reflections and Progress* adopted by the Governing Body of the City of Cheyenne by Resolution No. 5573, is the Master Plan for the City of Cheyenne and the Comprehensive Plan for portions of Laramie County adopted by both the Governing Body of the City of Cheyenne and Laramie County Board of County Commissioners; and

WHEREAS, the intent of the Future Land Use plan is not to predetermine specific land uses for individual parcels or specific locations for uses or facilities, but to provide a general framework for neighborhoods and activity centers organized around roadway networks and major parks and open space; and

WHEREAS, Saddle Ridge, LLC, property owner, has initiated an amendment to the Future Land Use map to amend the land use category from Community Business to Urban Residential for all of Lot 2 and a portion of Lot 3, Block 1, Saddle Ridge Subdivision, Cheyenne, Wyoming, to be known as Saddle Ridge 7th Filing (located at the southeast corner of the intersection of US Highway 30 and Whitney Road); and

WHEREAS, Plan Amendments approved by the Governing Body pursuant to the criteria set forth on Page 18 of *Plan Cheyenne*, as amended; and

WHEREAS, the Laramie County Planning and Zoning Department, under the authority of the Laramie County Board of County Commissioners, reviewed the proposed future land use map amendment and made comments that were forwarded onto the City of Cheyenne; and

WHEREAS, a public hearing to receive public input and comments on the proposed Future Land Use map amendment for the above described property was held before the City of Cheyenne Planning Commission on August 5, 2015 and the Commission subsequently recommended adoption of the proposed *PlanCheyenne* Future Land Use map amendment; and

WHEREAS, Plan Amendment processes and procedures required by *Plan Cheyenne*, as amended, have been followed with regard to the request by Saddle Ridge, LLC to amend the Future Land Use map category for the above described property.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING that the request submitted by Saddle Ridge, LLC, property owner, to change the land category for all of Lot 2 and a portion of Lot 3, Block 1, Saddle Ridge Subdivision, Cheyenne, Wyoming, to be known as Saddle Ridge 7th Filing (located at the southeast corner of the intersection of US Highway 30 and Whitney Road), is hereby approved; and

BE IT FURTHER RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that an amendment to the Future Land Use Map contained in *PlanCheyenne*, as amended by Resolution No. 5573, is hereby adopted to change the land use category from Community Business to Urban Residential for all of Lot 2 and a portion of Lot 3, Block 1, Saddle Ridge Subdivision, Cheyenne, Wyoming, to be known as Saddle Ridge, 7th Filing (located at the southeast corner of the intersection of US Highway 30 and Whitney Road), as indicated on Exhibit A attached with this Resolution.

PRESENTED, READ AND ADOPTED THIS ____ DAY OF _____, 2015.

(S E A L)

ATTEST:

CAROL INTLEKOFER, CITY CLERK

RICHARD L. KAYSEN, MAYOR

STAFF REPORT
Comprehensive Plan Update

CASE NUMBER(s): PLN-15-00011

PREPARED BY: Josh Tetzlaff

MEETING DATES: August 3, 2015 – Planning Commission
August 10, 2015 – City Council

PROJECT: Saddle Ridge Plan Update

WORK DESCRIPTION: An update from Community Business to Urban Residential

CURRENT DESIGNATION: Community Business

PROPOSED DESIGNATION: Urban Residential

PLANNING COMMISSION RECOMMENDATION: Recommend support of the modification to the future land use map converting a portion of land previously anticipated for commercial development to residential development.

PLANNING COMMISSION UPDATE: At its regular meeting on August 3, 2015, the Planning Commission voted to recommend approval of the modification to the future land use map.

CITY COUNCIL RECOMMENDATION: The Development Department recommends support of the modification to the future land use map, converting a portion of the land previously anticipated for commercial development to residential development.

EXECUTIVE SUMMARY:

This is an application for a future land use map amendment at the southeast corner of the intersection of US Highway 30 and Whitney Road. Currently, the land use designation for this area is Community Business. PlanCheyenne incorporated this future land-use designation based on the existing zoning that was part of the initial Saddle Ridge development. A request has been submitted by the current developer for Saddle Ridge, 7th Filing to change to land use designation to Urban Residential. This designation would allow the area to be developed residentially instead of commercially.

According to W. S. § 15-1-601, all zoning must be made in accordance to a comprehensive plan. The property is currently zoned CB Community Business to follow the future land use designation of Community Business. Residential is not one of the uses intended in the Community Business district and thus a zone change to residential would not be following the comprehensive plan. A change to Urban Residential in the future land-use plan would allow for a zone change to a residential zone.

This amendment process allows for additional public input when the land-use is changing significantly from previous expectations. The review criteria provides a framework for a public discussion about the land-use change. With regard to this proposal, PlanCheyenne certainly supports integrating commercial uses into neighborhoods. This proposal represents less commercial activity in the area than previously planned. The applicant has identified the market for commercial property has not been able to produce activity in this area that would be conducive with the existing neighborhood. Commercial activity is still contemplated in the area, with commercial plans still in place at the southwest corner of Whitney Road and US-30, although these plans have not been vested with development applications. Commercial zoning also is in place immediately to the east. In summary, this land-use change is relatively minor in nature and there remains commercial zoning in place to help serve the neighborhood. This would appear a reasonable approach moving forward.

~~Due to inconclusive support from the review criteria found in PlanCheyenne, staff does not have a recommendation on whether to change to future land use map.~~

Following the review criteria for amendments to PlanCheyenne, staff supports a modification to the future land use map, converting a portion of land previously anticipated for commercial development to residential development.

FUTURE LAND USE MAP AMENDMENT REVIEW CRITERIA: A Plan Amendment may be approved by the Governing Body based upon the following considerations:

BENEFIT - *The proposed amendment is beneficial to the community or addresses issues not foreseen during the planning process.*

Currently, the land use designation for this property is Community Business. According to PlanCheyenne, this category is generally found at the interchanges of interstates or at the intersection of an arterials and/or state highways. The intersection of US Highway 30 and Whitney Road meets this criterion.

That being said, it is not the only Community Business in the area. There is also this category on the northwest corner of this intersection. Due to that, more Community Business is not necessary. Changing this area to Urban Residential as requested does not necessarily benefit the community but it does not hurt it either.

COMPATIBILITY - *The proposed amendment is compatible with the surrounding area, and the goals and policies of the Plan.*

The proposed amendment is compatible with the surrounding area. To the south and east is Urban Residential designated areas with a similar build out as proposed for this subject area. The ability to change to respond to market forces is one of the policies of PlanCheyenne (ref. Policy 1.1.B). While changing to Urban Residential is not necessarily more flexible than Community Business it the uses it is intended for, it does adjust the property to what the market is currently demanding. There is the potential that in the future the market may demand something other than residential at this property, for which the land use designation would not work.

IMPACTS - *The proposed amendment will address and mitigate impacts on transportation, services, and facilities.*

The proposed amendment should not increase traffic on the adjoining roads in terms of overall volume. It will affect the volume of traffic during peak hours as it will add more homes. Commercial uses, while they show slightly higher overall volumes of traffic, do spread the traffic out throughout the day instead of focusing the traffic during peak hours.

SERVICES - *The proposed amendment will have minimal effect on service provision, including adequacy or availability of urban facilities and services, and is compatible with existing and planned services.*

Water and sanitary sewer could potentially be impacted by a change of use at this location. This is due to residential uses typically having a greater impact on sanitary sewer capacity than commercial uses. These changes will have to be accounted for with any proposal in the area moving forward.

ANNEXATION - *The proposed amendment does not jeopardize the City's ability to annex the property.*

The property is already a part of the City so this amendment would not jeopardize any annexation potential.

URBAN SERVICE BOUNDARY - *The proposed amendment is consistent with the logical expansion of the Urban Services Area.*

The area is located within the Urban Service Boundary and thus meets that criterion of the Urban Residential category.

UNINTENDED CONSEQUENCES - *Strict adherence to the Plan would result in a situation neither intended nor in keeping with other key elements and policies of the Plan.*

Strict adherence to the Plan would mean this property must develop in a commercial way and would not be able to develop residentially. According to the applicant, this may result in the land remaining undeveloped for the foreseeable future, with market demand not sufficient to generate compatible commercial development at this time.

PUBLIC WELFARE - *The proposed plan amendment will promote the public welfare and will be consistent with the goals and policies of PlanCheyenne and the elements thereof.*

A change to Urban Residential will not promote further public welfare amongst the community. A reoccurring theme in PlanCheyenne is mixing uses throughout neighborhoods (ref. Principle 1.1, 2.2, 3.4). By changing to Urban Residential, the potential for mixing uses immediately within the neighborhood is eliminated without further change. As previously noted, there are commercial uses at the northwest corner of the intersection of US-30 and Whitney Road. A change won't completely eliminate commercial from area.

Reviewing Agencies w/ Comments:

- County Planning (Brett Walker) **(FYI)**
 - o County Planning supports this amendment. Thank you for the opportunity to comment.

Reviewing Agencies w/o Comments:

- Development Department (Brandon Cammarata)
- Development Department (Josh Tetzlaff)
- Metro Planning Office (Nancy Olson)
- Urban Planning (Matt Ashby)

Reviewing Agencies not Responding:

- None

Other Comments Received:

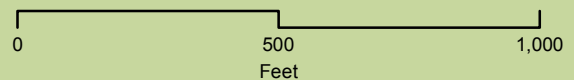
- None

cc: Owner
Agent/Applicant
File

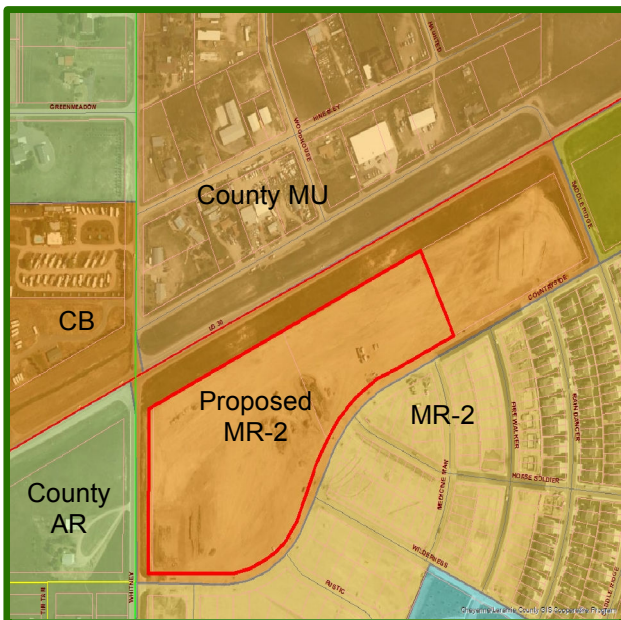
Saddle Ridge, 7th Filing Comp Plan Amendment, Zone Change, & Final Plat



Applicant: Saddle Ridge, LLC
Agent: John Edwards, Edwards Development, LLC
Application Numbers
Comp Plan: PLN-15-00011 Final Plat: UDC-15-00425
Zone Change: UDC-15-00421

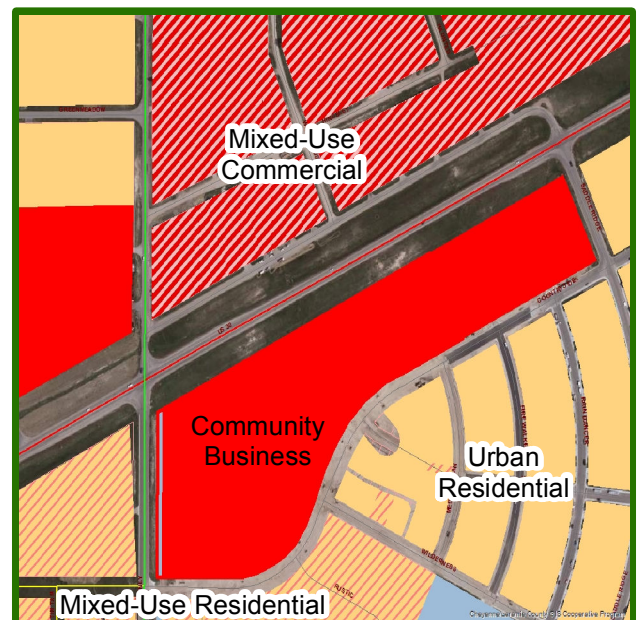


Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



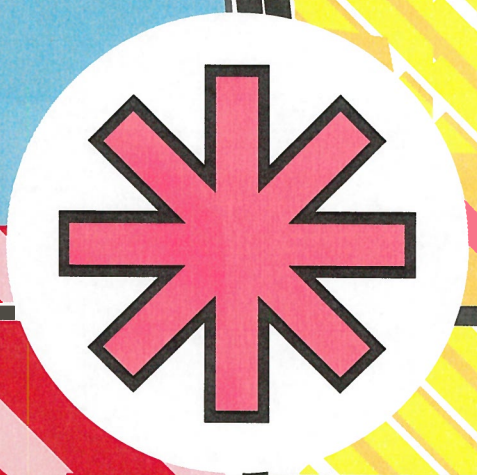
DELL RANGE BLVD

HAYES AVE

US 30

WHITNEY RD

E PERSHING BLVD



Future Land Use

Legend

- Planning Area Boundary
- City Boundary
- Urban Service Boundary
- State Lands
- Floodplain
- Natural/Cultural Resource Area
- Highway Corridor/Gateway
- Agriculture/Rural
- Rural Residential
- Urban Transition Residential
- Urban Residential
- Medium-Density Residential
- Medium-Density Commercial
- Medium-Density Employment
- Industrial
- Central Business District
- Community Business
- Public and Quasi-Public
- Military/Federal
- Open Space and Parks
- Medium-Density Commercial Activity Center
- Community/Regional Activity Center
- Community Park Site

Future Roadways

- Interstates
- Principal Arterial
- Minor Arterial
- Collector
- Rempical Road



FUTURE LAND USE

Cheyenne Area Master Plan

City of Cheyenne Version

March 2014

